

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE**

Public Redacted Opening Brief of Open Grid Archive

Filed: March 13, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Counsel:** Tamsin Roe and
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Nature of the Appeal

Open Grid Archive asks the Court to separate a supported core of Exemption 7(E) material from three rulings that swept more broadly than the agency’s proof. The record permits protection of nonpublic trigger relationships, response ordering, and implementation detail within the operational decision trees. It does not support categorical treatment of every asserted safety field, a blanket conclusion that no additional text can be segregated, or continued restriction of complete judicial filings without document-specific findings.

The appeal concerns twelve fictional records totaling 200 source pages. It contains no authentic system instruction, infrastructure fact, credential, or incident detail. Public samples use approved notices where disputed fields occur, allowing the parties and Court to evaluate legal categories without disclosing an operational meaning.

Open Grid requests affirmance only as to the adequately supported decision-tree details under 7(E), vacatur as to categorical 7(F), segregability, and overbroad sealing, and remand for the latter three matters. That measured result respects legitimate law-enforcement interests while enforcing FOIA’s requirements of specificity, foreseeable harm, and release of reasonably segregable nonexempt information.

Jurisdiction and Standards of Review

The district court entered final judgment in synthetic docket SYN-DMD-25-CV-0914 on January 2, 2026. Open Grid filed its notice of appeal on February 2, and the record was transmitted on February 9. This Court has jurisdiction under 28 U.S.C. § 1291 because the judgment disposed of the parties' competing claims and left no merits issue pending in the district court.

FOIA exemption rulings resolved on summary judgment receive de novo review. The agency bears the burden of showing that withheld information falls within a claimed exemption, and the reviewing court must assess whether its declarations and indexes provide a reasonably specific basis for that conclusion. A reviewing court may examine controlled material without turning that material into public operational instruction.

Segregability is likewise an independent legal obligation. The record must support a finding that all reasonably segregable nonexempt matter was released after a reasoned, document-sensitive review. Judicial sealing presents a separate access question. Under *Company Doe v. Public Citizen*, a court must identify the source of the public-access right, consider alternatives, and support restrictions with specific findings. Open Grid challenges the district court's breadth, not this Court's carefully bounded interim treatment of four paired filings.

The Administrative Record

Nila Quen submitted request DOE-FOIA-2024-OG-041 for final and superseded versions of fictional Grid Sentinel playbooks and governance instruments. ACK-OG-0610 acknowledged the request, and CLR-OG-0621 narrowed it to final materials while excluding drafts, routine correspondence, real incident material, technical configuration data, credentials, and personal contact information. DOE issued release RLS-OG-001, administrative appeal DOE-APR-2024-OG-017 followed, and FAD-OG-1007 affirmed the initial treatment.

The search reported in SRCH-OG-2025-0804 moved from 16,842 raw hits to 1,284 deduplicated candidates and then forty-six custodian-reviewed files. Twelve records comprising 200 source pages were responsive: sixty pages of decision-tree material, fifty-four of escalation matrices, sixty-four of coordination appendices, and twenty-two of governance instruments.

Three records totaling fifty-four pages were withheld in full; seven totaling 124 pages were partly released; two totaling twenty-two pages were fully released. The production contained 146 images, sixty-eight without blackout and seventy-eight redacted. Sixty-two redacted images cited 7(E), fifty-one cited 7(F), and thirty-five cited both. Every fully withheld page cited 7(E), and thirty-nine also cited 7(F).

The Issues Are Narrower Than the Collection

Open Grid does not contest the reported repositories, custodians, search terms, or arithmetic. Nor does it deny that records compiled to support prevention and response to unlawful attacks may satisfy Exemption 7's law-enforcement threshold. Those concessions do not resolve which particular information is protected by 7(E) or 7(F), whether neutral text can be separated, or whether entire court filings should remain restricted.

The agency repeatedly moved from the collection's purpose to the treatment of every nearby field. A record can serve a protective function while containing ordinary publication history, approval language, descriptive headings, or administrative assignments. Conversely, an abstract relationship among concealed fields can reveal an operational design even though the individual values are absent. FOIA requires attention to that difference.

The Court can decide the appeal without receiving real cyber detail. The public record represents a decision condition as [REDACTED—FICTIONAL DECISION CONDITION], a response order as [REDACTED—FICTIONAL RESPONSE ORDER], and an escalation value as [REDACTED—FICTIONAL ESCALATION VALUE]. Those notices identify legal functions only. They permit a ruling about the agency's explanation while preserving the exercise boundary against actionable instruction.

Exemption 7(E) and the Operational Decision Trees

Exemption 7(E) covers qualifying law-enforcement techniques and procedures and, under its guideline clause, information whose disclosure could reasonably be expected to risk circumvention of law. The public descriptions establish that certain decision-tree passages do more than announce a general protective objective. They connect a concealed condition to a concealed response order and embed implementation detail in that relationship.

Open Grid therefore does not seek release of a passage where [REDACTED—FICTIONAL DECISION CONDITION] determines [REDACTED—FICTIONAL RESPONSE ORDER], or where disclosure of [REDACTED—FICTIONAL ESCALATION VALUE] would expose the organization of the nonpublic framework. The agency's declarations explain why revealing those relationships, rather than merely acknowledging their existence, could enable circumvention of the fictional protective process.

The district court properly sustained withholding of that operational core. *Grey v. Alfonso-Royals* protects nonpublic implementation detail, while *Zaid v. Department of Justice* permits meaningful functional categories founded on document-by-document review. Neither principle automatically extends to every caption, approval sentence, or recordkeeping line on a page. Affirmance should be limited to the supported nonpublic trigger, order, and implementation relationships.

Seven(E) Does Not Absorb Neutral Administration

The agency's strongest showing concerns functional relationships within the decision-tree records. Its weaker entries apply the same formula to nearby material that states who approved a publication, whether an edition superseded another, or how a heading organizes already public concepts. A location beside protected information is not itself a technique, procedure, or circumvention-sensitive guideline.

Grey and PEER v. United States Section, International Boundary and Water Commission illustrate the need to connect the character of the withheld information to 7(E)'s statutory clause and asserted risk. Open Grid does not read those decisions to demand disclosure of a protected mechanism. It relies on the more basic proposition that an agency must explain why the information at issue, at the useful level of detail, fits the exemption.

The Court should reject any rule under which the valid protection of one relationship closes the remainder of a page. It can affirm the operational decision-tree redactions and still require renewed consideration of neutral surrounding matter. Such a disposition neither substitutes judicial line drawing for agency expertise nor reveals a hidden value; it directs DOE to perform the discrimination its own supplemental release showed was possible.

The Foreseeable-Harm Requirement

FOIA's foreseeable-harm provision, 5 U.S.C. § 552(a)(8)(A), requires the agency to reasonably foresee that disclosure would harm an interest protected by an exemption, unless disclosure is prohibited by law. A recital of the exemption's purpose does not alone establish the consequence of releasing each disputed category.

For the supported decision-tree relationships, the declarations connect disclosure to exposure of how a concealed condition governs an ordered response. That account is sufficiently concrete even in sanitized form. For administrative captions and generic coordination language, however, DOE often says only that context is sensitive. It does not identify a comparable chain between the visible text and a protected harm.

This distinction matters for both review and remedy. Open Grid accepts that the Court may affirm where a functional explanation and predicted harm converge. It asks the Court to vacate rulings that relied on categorical labels without a record-specific bridge. The result would not compel immediate release. On remand, DOE could provide a lawful explanation, release the material, or determine that a narrower redaction adequately protects the asserted interest. Foreseeable harm supplies discipline without forcing operational content into the public record.

The Vaughn Materials Must Permit Testing

A Vaughn presentation need not reproduce withheld content, but it must identify the record and explain the relationship between the information, the claimed exemption, and the predicted harm. *Rein v. United States Patent and Trademark Office* emphasizes the agency's burden to support its exemption claims rather than leave the court to infer a justification from broad subject matter.

DOE's primary materials identify all twelve records and report disposition totals, yet several entries repeat family-level phrases across unlike passages. A hidden duty role, safety reference, or contact channel is described as sensitive without explaining whether the particular use is operational, administrative, or already reflected in released context. The recurring notices mark placement but do not themselves supply the missing reason.

The supplemental material improved the account but also exposed its limits. Seventeen passages on eleven replacement pages were released through RLS-OG-002 without changing the twelve-record, 200-page universe. Six replacement pages contain two newly released passages and five contain one. That correction confirms that review at a smaller unit was practical. It also makes categorical assertions about every remaining field more, not less, important to substantiate.

A Category Must Remain Tied to Function

Functional grouping can make a large record understandable. The defect here is not the use of categories as such, but the slippage between a category name and a conclusion. A notice reading [REDACTED—FICTIONAL DUTY ROLE] might denote a nonpublic assignment in one passage and an ordinary administrative owner in another. [REDACTED—FICTIONAL SAFETY REFERENCE] may point to a genuinely sensitive dependency or merely to a general policy heading.

The public Vaughn account often assigns identical consequences to those distinct settings. It does not consistently state what relationship would be learned, why that relationship is not already apparent from released text, or which exemption supplies the protection. The agency may rely on a representative explanation only when the representation actually fits the grouped passages.

Open Grid seeks a remand instruction that preserves useful categories but requires DOE to test their membership. An entry can state a document family, page function, field type, relevant statutory clause, and predicted consequence without disclosing the hidden content. If that account supports 7(E), withholding remains available. If it supports only a generalized concern, the field must receive a new determination rather than inherit protection from its neighbors.

Exemption 7(F) Requires More Than a Safety Label

Exemption 7(F) applies to law-enforcement information whose production could reasonably be expected to endanger the life or physical safety of an individual. Open Grid does not dispute that the statute can protect information linked to a real and reasoned safety concern. It contests DOE's categorical equation of every safety-associated label with the required danger.

The indexes identify fictional duty roles, safety references, and contact channels, but their explanations frequently stop at the possibility that the collection concerns protective work. A public reader cannot tell whether a particular field identifies an exposed person, changes the likelihood of harm, or merely describes an administrative function. The thirty-nine fully withheld pages citing 7(F) received substantially the same account despite appearing in different record families.

EPIC v. Department of Homeland Security permits protection without naming the threatened person, while the statute still requires an expected endangerment of an individual. DOE can make that showing without publishing a live channel. It did not do so categorically here. The district court therefore erred by treating the presence of a safety-themed field as enough to sustain every 7(F) withholding.

The Exemption 7(F) Showing Fails at the Required Connection

The public samples preserve the disputed positions as [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL]. Those labels reveal no identity or operational meaning. They show, however, that different functions were grouped under a single prediction of harm.

A duty role could matter because it identifies a person assigned to a sensitive task, or it could be a generic office label already apparent elsewhere. A safety reference could encode a protected dependency, or it could cite a general governance standard. A contact channel could expose an individual, or it could merely record that coordination occurred. The exemption turns on the agency-supported danger arising from disclosure, not the noun used to describe the field.

DOE's declarations did not connect each category, or a defensible representative subset, to a person-centered risk. The supplemental review released additional passages without a new safety incident or altered record count, reinforcing that the initial category was not self-validating. Vacatur and remand will allow DOE to make a narrower showing where warranted. It should not produce an order directing release of any information independently sustained under 7(E).

Segregability Remains Independent

FOIA directs agencies to provide any reasonably segregable nonexempt portion after deletion of exempt matter. That sentence is not satisfied merely because some information on a page is properly withheld. The agency must evaluate whether intelligible titles, approval language, revision entries, headings, or explanatory prose can stand without revealing a protected relationship.

DOE's supplemental release is concrete evidence that smaller units existed. RLS-OG-002 added seventeen passages across eleven replacement pages: six pages gained two passages apiece and five gained one, with no change to the responsive universe. Those releases did not disclose a concealed condition, ordered response, escalation value, person, or channel. They supplied ordinary context that the earlier review had treated as inseparable.

The district court relied too heavily on declarations asserting line-by-line review without reconciling that assertion with the correction or the family-level Vaughn descriptions. Open Grid does not ask the Court to conduct redaction itself. It asks for vacatur and a remand requiring a fresh, documented segregability analysis. Any detail properly protected under 7(E), and any 7(F) detail supported on remand, may remain withheld while meaningful nonexempt text is released.

The Supplemental Release Does Not Moot the Defect

DOE characterizes RLS-OG-002 as evidence that its process was careful and complete. The release does show that the agency revisited the material. It does not eliminate the need to evaluate the remaining passages or explain why the initial all-or-nothing conclusions changed.

The replacement production preserved all underlying totals: twelve records, 200 source pages, and the same division among decision trees, escalation matrices, coordination appendices, and governance instruments. Its only substantive change was the release of seventeen passages on eleven pages. That precision matters. It demonstrates that a passage-level review was feasible and that additional context could be disclosed without reconstructing a protected operational relationship.

The Court need not infer bad faith from the correction. A lawful remand can credit the agency for reconsidering while requiring it to finish the task under the proper standard. The question is not whether some progress occurred but whether the current record supports every remaining inseparability conclusion. Because the district court treated the supplemental production as curing the problem without examining its implications, its segregability ruling should be vacated.

Judicial Sealing Is a Separate Inquiry

The district court restricted broad collections of briefing and supporting material largely because they discussed withheld agency information. That approach merged FOIA exemption analysis with the public's qualified right of access to judicial records. Company Doe requires document-specific consideration, public notice, evaluation of less drastic alternatives, and findings adequate for review.

This Court's interim paired practice supplies the narrower model. Public briefs and appendix excerpts remain accessible. Controlled counterparts contain only harmless semantic placements, not real protected data, and are identified individually. The motion and certificate explain the reason, scope, alternatives, eligible viewers, and review point. No party seeks a sealed docket or disappearance of public legal reasoning.

Open Grid maintains that even these temporary restrictions must end or narrow when their justification ceases. It challenges the district court's broader order because it did not distinguish among documents or explain why redaction could not protect the asserted interests. Vacatur would not automatically publish a protected 7(E) relationship. It would require the district court to apply the judicial-record standard independently and make particular findings before imposing any renewed restriction.

The Proper Remand Is Bounded

The requested remedy preserves what the present record supports. The Court should affirm the withholding of nonpublic trigger relationships, response ordering, and implementation details within the operational decision trees under 7(E). That ruling can be stated at the level of function, without revealing a concealed value or actionable arrangement.

The Court should vacate the categorical 7(F) ruling and remand for a showing tied to the expected endangerment of an individual. It should separately vacate the segregability ruling and direct DOE to reconsider all remaining records in light of the passage-level supplemental release. Finally, it should vacate the district court's overbroad sealing order and require material-specific findings under the applicable access framework.

None of those remands dictates disclosure of information sustained under 7(E). Nor do they foreclose DOE from supporting a narrower 7(F) withholding or a particular judicial restriction. They restore the sequence required by statute and access doctrine: identify the information, connect it to the governing interest, release what can reasonably stand alone, and restrict a judicial filing only on findings directed to that document.

Conclusion

The record presents a limited operational core and a broader set of unresolved classifications. Open Grid has not asked the Court to publish a real decision condition, response order, escalation value, duty assignment, safety dependency, or contact path. Every disputed field is represented by a nonfunctional public notice, and every person and system in the record is fictional.

For the operational decision trees, DOE supplied enough functional detail to support 7(E) protection for nonpublic trigger relationships, ordered responses, and their implementation. The judgment should be affirmed to that extent only. The categorical 7(F) ruling lacks the required connection to expected danger; the segregability ruling does not account for the seventeen newly released passages; and the district court's sealing order does not contain the document-specific analysis required for judicial records.

Open Grid respectfully requests partial affirmance, vacatur of those three rulings, and remand for proceedings consistent with the Court's opinion. Tamsin Roe and Leo Marr certify that this public filing uses only the approved fictional notices, contains no controlled inert label, and was served on Corin Pell through the synthetic docket on March 13, 2026.